THAMUSANQA MOYO

versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
MUTEVEZDI & NDUNA JJ
BULAWAYO, 16 October and 18 November 2025

Criminal Appeal

T Nyathi, for the Appellant

K Jaravaza, for the Respondent

MUTEVEDZI J: Not everything done by a magistrate pursuant to a criminal trial is appealable. Some avenues employed by the courts in dealing with children found to be in conflict with the law have the effect of erasing such convictions. This matter typifies that.

[1] The background to this appeal is that, the appellant, a 15-year-old juvenile, was convicted of the crime of aggravated indecent assault in contravention of section 66(1) (a) (i) as read with section 64(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the CODE"). Following that conviction, the learned regional magistrate, in terms of section 351(2)(b) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] ("the CPEA") ordered the committal of the young man to Percy Ibbotson Probation House for a period of three (3) years. Surprisingly, the appellant was aggrieved by that outcome. He noted an appeal against what *Ms Nyathi* who appeared for him, described as "the sentence" on 7 August 2025.

[2] The facts which led to the appellant's conviction were largely common cause. He accepted them as shown by his failure to challenge the conviction. They were that on the date in question, the offender had pounced on the complainant, dragged her behind a door, lowered her panties and inserted his penis between her thighs. In its papers, prosecution had also alleged that the offender had inserted his penis into the complainant's mouth but during

trial, no evidence was led to prove that aspect. The appellant was therefore convicted on the basis of the allegation of inserting his penis between the little girl's thighs.

Proceedings before this court

[3] As already stated, the appellant was aggrieved with his committal to a training institute in terms of s 351(2) of the CPEA. He filed this appeal. The grounds of appeal against "sentence" were couched as follows:

> **"GROUNDS OF APPEAL**
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> i. The court a quo misdirected itself in failing to exercise its sentencing discretion judiciously in not considering other homes within the appellant and went for sending the same to an institution which should be considered as a last resort in light of the age of the appellant.
> ii. The court a quo erred in institutionalizing the appellant for 3 years despite the same being 15 years and without considering the National orphan care policy.
> iii. The effective sentence of 3 years was so excessive as to induce a sense of shock for a first-time juvenile offender who is due to sit for his ordinary level examinations next year, where the sentencing guidelines categorizes the appellant as special and should be kept out of custody, this sentence has the effect of a custodial sentence taking note of the age of the appellant.
> iv. The court a quo misdirected itself by not considering the Accused's mitigation which called for a chance for his father to mentor him since he only came back in 2024 December from South Africa.
> v. The court a quo erred in failing to balance interests of both children the accused and complainant and sought to punish the appellant instead of rehabilitating him, the sentence does not show consideration of best interests of the appellant by the court a quo.
> vi. The court a quo failed to consider other deterrent sentences such as the suspended sentence to control the behavior of the appellant.
> vii. The court a quo also erred in failing to recognize or take hid of the fact that the appellant was victim of drug abuse by the complainant's mother a fact which the probation officer acknowledged, this was to be considered as mitigatory."
>
> **RELIEF SOUGHT**
> **"WHEREFORE**, the Appellant prays for the following order:
> **IT IS BE AND HEREBY ORDERED THAT:**
> 1. Appeal against sentence be and is hereby granted.
> 2. The sentence be and is hereby set aside.
> 3. That the appeal against sentence succeeds and the matter is remitted to the court aquo for proper sentencing."

[4] Even if this decision had been appealable, we doubt that anything would have come out of the circuitous and barely comprehensible grounds stated above. They are clearly prolix and therefore offend the peremptory requirements of rule 100(2) of the High Court Rules, 2021. Most of them made little sense, if any. The efficacy of the prayer itself was questionable. The only thing which we could relate to was that the period ordered by the magistrate for

the detention of the appellant in the training institute was too long given the appellant's age.

[5] At the hearing of the appeal, we raised the question of whether or not the decision by the magistrate was appealable and directed both counsel for the appellant and the respondent to argue the issue. They did but counsel's arguments barely took us a step further. They kept reverting to the question whether or not the institutionalization was justifiable in the circumstances. In our view that was besides the point.

The law

The competence of the appeal.

[6] If I may state the obvious, at the end of a criminal trial, an accused person may, in the first place, appeal against conviction only. Second, he/she may also appeal against sentence only. The third scenario is that there can be an appeal against both conviction and sentence. A criminal sentence can only be passed pursuant to a conviction. Where there is no conviction, whatever sanction may be imposed cannot be regarded as a sentence. To put this into context, where a person is, for instance, committed to an institution for treatment in terms of section 29(2) of the Mental Health Act [Chapter 15;12] after he/she is found not guilty by reason of insanity is not a criminal sentence. In addition, it is not a rule that every person convicted of an offence will be subjected to a criminal punishment. Further, section 351(7) of the CPEA provides that: -

> (7) If an order is made in terms of paragraph (a) of subsection (2) or paragraph (a) of subsection (3) upon the conviction of a person, **that conviction shall not, for the purposes of any enactment, be regarded as a conviction.** (bolding is my emphasis).

[7] Subsections (2) (a) and (3) (a) of section 351of the CPEA provide for the diversion of a convicted juvenile to be treated in terms of the Children's Act and the placement of such juvenile offender under the supervision of a probation officer or other suitable person respectively. If the above is properly understood, it means that in instances where a juvenile offender is handled in terms of the above provisions, he/she is not regarded as having been convicted of a criminal offence. The sanctions imposed on him or her are therefore not criminal sentences and cannot be appealed against. Notably, subparagraphs (b) to both

subsections (2) and (3) speak to the institutionalization of juveniles in training institutes. That they were specifically excluded from subsection (7) may be seen, through the application of the *expressio unius* rule of statutory interpretation, as meaning that the fact of such institutionalization does not rub off the conviction. But the matter cannot stop there. The question whether or not that placement in a training institute is a criminal sentence must still be explored and answered.

[8] The nature of punishments for convicted persons in Zimbabwe is outlined in section 336 (1) of the CPEA. The punishments range from imprisonment in its various forms, community service, a fine to placing the convict under recognizances. The placement of a child in a training institute is conspicuous by its absence from that list. Subsection (2) of section 336 is however clear that nothing in subsection (1) shall be interpreted as preventing a court from imposing punishment other than those mentioned under that part where the court is specifically authorised by any enactment to impose such punishment. Section 351 falls under Part C which is dedicated to **"Special provisions relating to punishments of juveniles."** What is critical in my view, is that the provisions of section 351(2) and (3) are identical to those in sections 20 and 25 of the Children's Act [*Chapter 5:06*] ("*The Children's Act*"). The Children's Act has nothing to do with the punishment of children but everything to do with the protection of children in need of care. It deals in exactly the same way as the CPEA, with children found in conflict with the law. It provides for their placement, for the same duration, in training institutions as does the CPEA. That to me, signifies that the placement of juveniles in training institutes in terms of section 351 of the CPEA is not intended to serve as their punishment. Instead, it is designed to achieve the same objective of providing care and protection for children. It would be ridiculous to think that institutionalization would be regarded as a form of support and safeguarding of a child by one statute (the Children's Act) but viewed as a punishment by another (the CPEA. There can be no sensible debate if any at all, that the combined effect of these provisions is that an order for committal under section 351(2) (b) is not a punitive measure but a welfare and rehabilitation order. It is not penal in every sense of that word. The finding of guilt merely enables the court to determine the appropriate protective and corrective intervention for a child offender. The legislature deliberately crafted section 351

to divert juveniles from the criminal justice system to the welfare and rehabilitation framework. The focus is more on reform than punishment. It is the reason why the child is placed under the jurisdiction of the Department of Social Welfare instead of the Prison Service, which ordinarily superintends over incarceration of convicted people including convicted children.

[9] In *S* v *C (a juvenile)* HH87-14 MUREMBA J supported the above view that institutionalization is not a punishment when she remarked that: -

> "The other alternative that the court has is to have the juvenile offender placed or institutionalised in a reformatory or in a training institute. This is in terms of section 351(2)(b) of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. This should be done after ascertaining with the Ministry of Social Welfare that accommodation is available…Again, if the court goes for this option it should not pass a sentence."

[10] Once the above is accepted, it must follow that the placement of a juvenile into a training institution is a decision that cannot be appealed against because it is not a criminal punishment. The essence of a court which has convicted a child invoking section 351 is to avoid the attendant consequences of a criminal conviction such as the child having a previous criminal record. The invocation of section 351 therefore amounts to the diversion of the child in conflict with the law from the formal criminal justice system. That processes brings to life the children's rights enshrined under section 81 of the Constitution. It brings to the fore that in cases such as this, legal practitioners are required to advocate for the best interests of the child instead of simply running with the interests of parents or guardians who instruct them to note appeals against decisions that are clearly intended to protect the child offender.

[11] Looked at in another way, even if the placement was appealable section 351 of the CPEA is clearly couched as a discretion given to a court. A trial court's discretion is only appealable in special circumstances where it is shown that the discretion was not properly and justifiably exercised. In this case, by challenging his placement in an in institution, the appellant was effectively contesting the trial court's decision to do so. The grounds of appeal were supposed to make that categoric by pointing out why such decision was wrong. In my view, they were far from doing so because they simply focused on the duration of the institutionalization.

[12] In the first place, it is illogical to challenge the institutionalization of a juvenile convicted of a crime such as aggravated indecent assault which attracts the same punishment as rape in terms of section 65 (2) of the CODE. Resorting to section 351(2)(b) is one of the few if not the only viable alternative to dogging the severe and minimum mandatory punishments stipulated by the law. If a court does not turn to it, it is required to imprison the juvenile. In the introductory paragraph of the case of *S v EN (redacted)* HB109-24, this court implored judicial officers to be inventive in their efforts to protect children in conflict with the law from unduly harsh penalties. It remarked that: -

> "Faced with this, [harsh laws] judicial officers must think away from the box and even there, must be able to employ legal ingenuity to protect children against inclement laws which do not cease to be law because of their severity. Even where they convict the children of the preferred crime the law provides various avenues which may be exploited to mitigate the punishment imposed on them."

[13] A trial court cannot therefore be criticized for placing a juvenile in a training institution in *lieu* of imprisonment as harsh as fifteen (15) years. Such placement must always be regarded as a soft landing for the child. Once that is accepted, the duration of the placement is not contestable because the trial court has no discretion as to how long the institutionalization must be. Once section 351 has been invoked, the trial court, just like the Children's Court under section 25, is stripped of its discretion as to the length of institutionalization. The statute demands that it be for a period of not less than three years unless earlier released under licence granted in terms of section 352(2)(a) or (b). In the case of *S* v *Pensula* HMA16-23 at p. 6 MAWADZE J (now DJP), acknowledging that in terms of section 351(2) (b) a trial court is stripped of its discretion held that: -

> "If the Magistrate's Court decides to proceed in terms of section 351 (2) (b) of the Criminal Procedure and Evidence Act *[Chapter 9:07]* all it does after the conviction of the young person in a criminal court is to ascertain the availability of a vacancy or accommodation at a specific Training Institute from the relevant authorities. Thereafter, if the answer is in the positive place such a young person in that Training Institution."

[14] Contending that the trial court could have imposed a shorter period is therefore akin to arguing that it must have exercised power which it clearly did not have. But that is not to say that a child placed into a training institute does not have any legal recourse. He/she does because subsection (4) of section 351 has inbuilt oversight mechanisms. It provides that where a magistrate has made an order for the institutionalization of a child, the record of proceedings must be transmitted to the registrar of the High Court for the automatic

review of such proceedings. It is that review procedure which is intended to ensure that the committal is lawful, appropriate, and consistent with the welfare of the child.

[15] In the present matter, the record of proceedings demonstrates that the learned regional magistrate acted squarely within the parameters of section 351. She properly considered the input of a probation officer, the appellant's age, background, education, and the need for a structured rehabilitation programme. She then weighed all that against the gravity of the offence committed as well as the safety of the complainant. The institution, Percy Ibbotson Probation House, is a designated training institution. It was from those considerations that the trial magistrate was persuaded to divert the child from the only available criminal punishment of imprisonment. In the circumstances, that approach was not only impeachable but was in the best interests of the child as required by section 81(2) of the Constitution of Zimbabwe.

Disposition

[16] In the end, and as stated earlier, the appellant appealed against a decision which was clearly unappealable. The situation was worsened by grounds of appeal, which were prolix and offended the peremptory requirements of rule 100(2) of the High Court Rules, 2021. He misunderstood the legal character of the order of his placement in an institution. He was not sentenced to imprisonment but was subjected to a welfare order for his rehabilitation and protection.

[17] Accordingly, we have no choice but to find that the appeal is not only misconcieved but is also incompetent. Consequently, we are forced to order as we hereby do, that the appeal be and is hereby struck off the roll.

MUTEVEDZI J……

NDUNA J…… I agree